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David Johnson Gets 13 Years In Adjustment Center

MOTION FOR NEW TRIAL CHARGES D.A. SPYING ON S.Q. 6 JURY



San Quentin Six defendant DAVID JOHNSON, one of three inmates convicted in the August 12 compromise jury verdict, has been sentenced to 13 years in the infamous Adjustment Centers of the California prison system by San Quentin's Classification Committee.

(San Rafael, Calif.) - According to a motion for a new trial for San Quentin 6 defendant David Johnson filed in Superior Court here last Wednesday, Marin County District Attorney Bruce Bales was caught spying upon the San Quentin 6 jury during the course of their sequestered deliberations.

Filed by Frank Cox, the Marin County public defender who served as Johnson's defense counsel during the lengthy, 16-month trial, the seven-page motion asserts that:

"The facts are that Bruce Bales, the District Attorney of the County of Marin, and one of the key witnesses against defendant David Johnson, attempted to both view the interior of the jury deliberation room, and to enter that room, from a restricted security corridor. He was eyewitnessed in this conduct by trial jurors who were returning from an Open Court session, who immediately reported this offense to a law officer. The jurors were then deliberating on Count Eight, the only charge found against defendant Johnson. Whether Mr. Bales did this deliberately or inadvertently was never made known to the trial jury, or anyone except the trial judge, who did nothing about it.

"The Court's apparent permissiveness with Mr. Bales, as perceived by a sequestered jury, was an open invitation to convict defendant David Johnson based upon Mr. Bales' trial testimony, and the theories of the prosecutor's office.

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